



HIGH COURT JUDGES (LEAVE, PENSION AND PRIVILEGES) (AMENDMENT) ORDER, 2009

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Order

further to amend the High Court Judges (Leave, Pension and Privileges) Order, 1997

WHEREAS it is expedient further to amend the High Court Judges (Leave, Pension and Privileges) Order, 1997, (P.O. No.3 of 1997), for the purposes hereinafter appearing;

NOW, THEREFORE, in exercise of the powers conferred by the Fifth Schedule to the Constitution of the Islamic Republic of Pakistan, the President is pleased to make the following Order:-

1. Short title and commencement.-(1) This Order may be called the High Court Judges (Leave, Pension and Privileges) (Amendment) Order, 2009.

(2) It shall come into force at once.

2. Substitution of paragraph 28, P.O. 3 of 1997. In the High Court Judges (Leave, Pension and Privileges) Order, 1997 (P.O. No. 3 of 1997), for paragraph 28 the following shall be substituted, namely:—

"28. Facilities to retired judges.—(1) A judge on retirement, and after his death, the spouse shall be entitled to the following benefits and perquisites at government expense, namely,—

(a) the services of a driver or an orderly at his option;

(b) 800 free local calls per month;

(c) 800 units of electricity per month as well as 25 HM³ of gas per month;

(d) free supply of water;

(e) 150 Litres of petrol per month;

(2) If during service a judge dies or has died before the commencement of this Order; the spouse shall also be entitled to the benefits and perquisites provided in sub-paragraph (1);

(3) No income tax shall be payable in respect of benefits and perquisites to which a judge or the spouse, as the case may be, is entitled under this paragraph.

(4) A judge on retirement opting to avail the facilities specified in sub-paragraph (1) shall undertake to perform the work of arbitration involving Government interest if assigned to him without charging any fee."

(5) The facility and benefits given to the retired judge under this paragraph shall stand suspended on his re-employment with Federal or Provincial Government.
